

UPSC GS-II POLITY

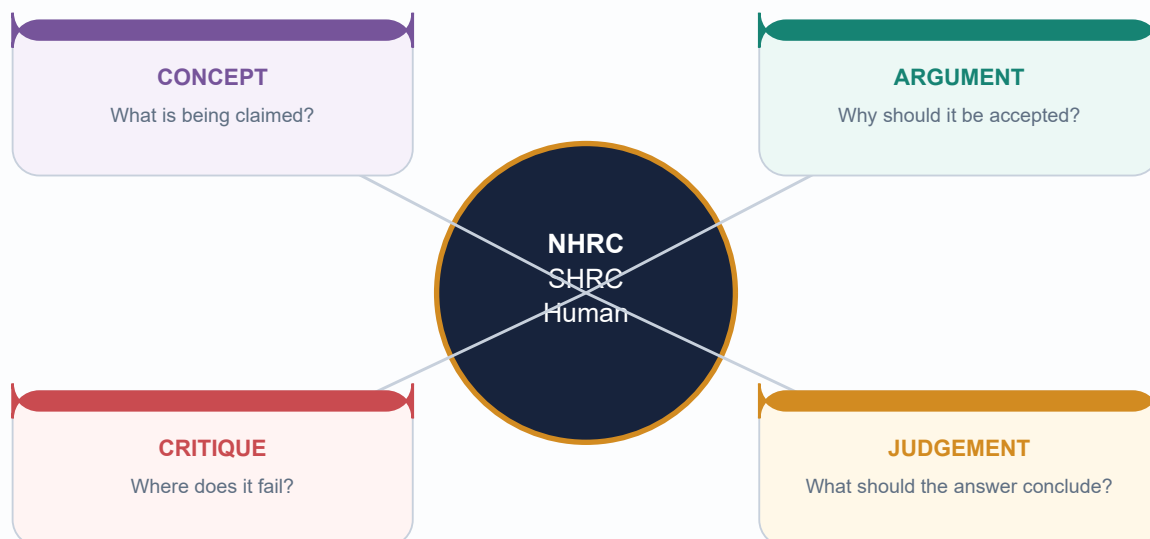
NHRC & SHRC — Human Rights Commissions

Integrated Basic + Advanced Course

10 deep-learning modules | Protection of Human Rights Act, 1993

Institutional maps, appointment/removal flows, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (M. Laxmikant + official updates)



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. NHRC — Legal Basis, Origin & Mandate

GS-II Polity -
Statutory Bodies

NEWS TRIGGER

NHRC's official portal (checked 21 Jul 2026) continues to describe India as holding GANHRI **A-status**, while the latest accreditation review cycle remains unresolved — reviving the recurring debate on whether India's apex human-rights watchdog truly meets international independence standards.

INTRO & ORIGIN

The National Human Rights Commission was established in **1993** under the **Protection of Human Rights Act, 1993** as the statutory **"watchdog of human rights"** — safeguarding life, liberty, equality and dignity guaranteed by the Constitution and international human rights covenants. Headquartered in **Delhi**.

The 2006 and 2019 amendments to the Act reshaped its composition, chairperson eligibility and tenure without altering its statutory (non-constitutional) character.

TIMELINE

1993 — Protection of Human Rights Act enacted; NHRC constituted as a statutory watchdog.

2006 — First amendment to the Act adjusts commission procedure.

2019 — Amendment widens chairperson eligibility, adds ex-officio members, cuts term to 3 years.

2026 (CA) — GANHRI accreditation status shown as unresolved on NHRC's own portal (checked 21 Jul 2026).

NHRC STATUTORY MANDATE

Watchdog of Human Rights (1993 Act)

Inquire Suo motu / petition / court-referred HR violations by public servants	Intervene In court proceedings involving human-rights allegations
Visit & Review Jails and detention facilities; review constitutional/legal safeguards	Promote HR research, literacy and NGO/civil-society engagement

KEY DATA

Aspect	Detail
Legal basis	Protection of Human Rights Act, 1993
Nature	Statutory body — NOT constitutional
Established	1993
Headquarters	Delhi
Core mandate	Protection of life, liberty, equality & dignity per Constitution and international covenants

STATIC THEORY

- NHRC is a creature of ordinary legislation (1993 Act), not the Constitution — it can be amended or repealed by Parliament through the ordinary law-making process.
- Its mandate deliberately mirrors constitutional guarantees (Articles 14, 21) rather than creating new substantive rights.
- The 2019 Amendment reflects a legislative choice to widen the leadership pool while simultaneously shortening tenure — a trade-off between eligibility and continuity.
- GANHRI accreditation (A/B status) is an international peer-review benchmark, not a domestic legal requirement, but it materially affects India's standing at the UN Human Rights Council.

MEMORY HOOK

NHRC = 1993 Act → Statutory Watchdog (NOT Constitutional) | HQ Delhi

MUST-KNOW FACTS

1. NHRC was established in 1993 under the Protection of Human Rights Act, 1993.
2. It is a statutory body, not a constitutional body.
3. Its headquarters is in Delhi.
4. Its mandate covers life, liberty, equality and dignity under the Constitution and international human-rights covenants.

UPSC TRAPS

WRONG: NHRC is a constitutional body created by a specific Article.

CORRECT: NHRC is a statutory body created by the Protection of Human Rights Act, 1993.

WRONG: GANHRI downgrade of India's NHRC status is a finalised, published decision.

CORRECT: As of the last verified check (21 Jul 2026), the review remains unresolved on NHRC's own portal — no final downgrade has been officially published.

MAINS ANGLE

Framework: Intro — define NHRC as a 1993 statutory watchdog, distinct from constitutional bodies. Body — link its mandate (life, liberty, equality, dignity) to Article 21 jurisprudence and to India's international HR obligations; note the accreditation/independence debate as the analytical crux. Conclusion — argue that statutory status need not mean weak status if independence safeguards (appointment, tenure, funding) are strengthened.

STUDY LINK

Polity → Fundamental Rights (Art. 21) →
National Commissions → Statutory Bodies
Ecosystem

HIGH

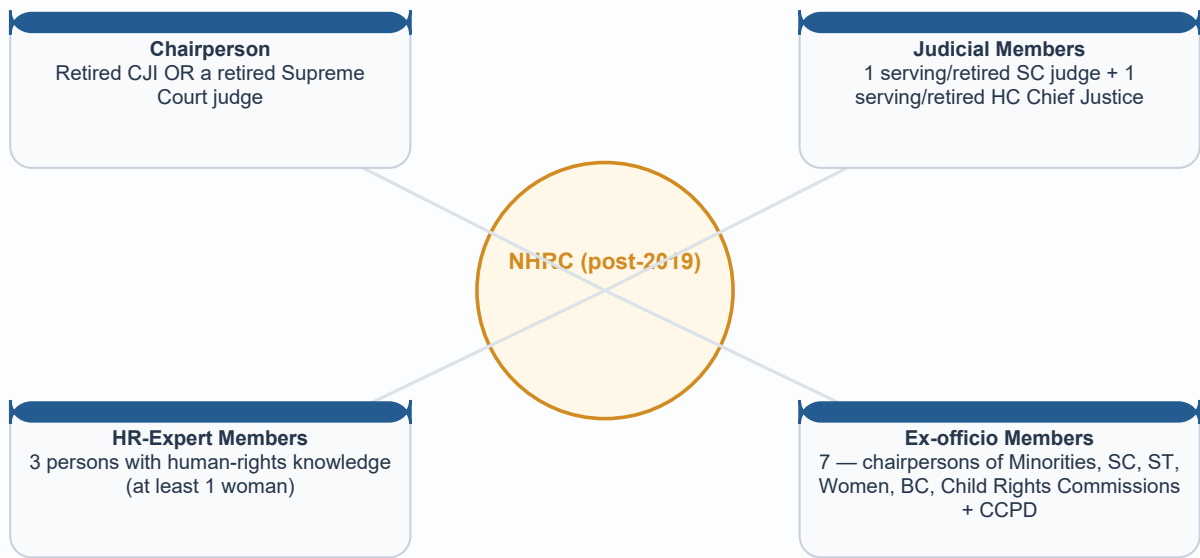
2. NHRC — Composition & Appointment (Post-2019)

GS-II Polity -
Institutional
Structure

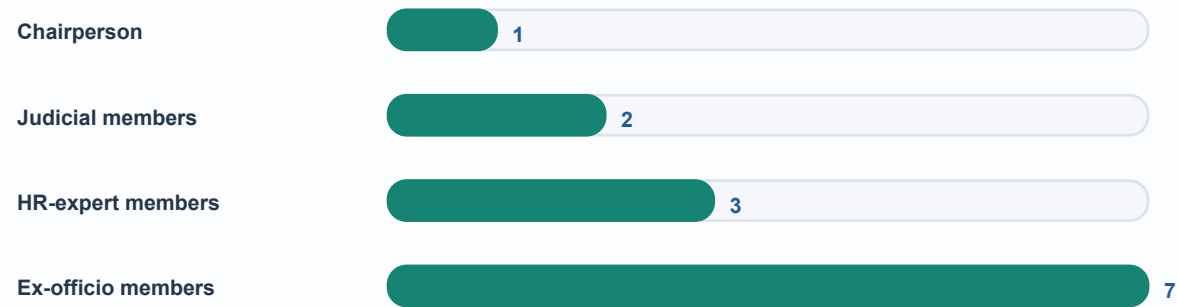
NEWS TRIGGER

The 2019 Amendment's widening of chairperson eligibility (retired CJI OR a retired SC judge) remains a reference point whenever committees recommend broadening leadership pools for statutory commissions.

NHRC — WHO SITS ON THE COMMISSION



NHRC COMPOSITION — MEMBER COUNTS BY CATEGORY



Counts as fixed by the Protection of Human Rights Act, 1993 (post-2019 Amendment).

KEY DATA

Appointing Committee Member	Role
Prime Minister	Head of the 6-member committee
Lok Sabha Speaker	Member
Rajya Sabha Deputy Chairman	Member
Leader of Opposition — Lok Sabha	Member
Leader of Opposition — Rajya Sabha	Member
Union Home Minister	Member

STATIC THEORY

- Appointment is by the President, but only on the recommendation of a 6-member committee — a design meant to insulate the choice from unilateral executive control.
- Including both Houses' Leaders of Opposition is meant to build cross-party legitimacy into the selection.
- The 7 ex-officio members link NHRC structurally to the other National Commissions (Minorities, SC, ST, Women, BC, Child Rights) and the CCPD, creating a coordinated rights architecture.
- Widening the chairperson pool to 'a retired SC judge' (not only a retired CJI) was meant to solve recurring vacancy problems.

MEMORY HOOK

6-member panel: PM + LS Speaker + RS Dy Chair + 2 LoPs + Home Minister

MUST-KNOW FACTS

1. Chairperson: a retired Chief Justice of India OR a retired Supreme Court judge (widened in 2019).
2. Members: 1 serving/retired SC judge + 1 serving/retired HC Chief Justice + 3 HR-knowledge persons (≥1 woman).
3. There are 7 ex-officio members drawn from other National Commissions and the CCPD.
4. The appointing committee has 6 members, chaired by the Prime Minister.

UPSC TRAPS

WRONG: Only a retired Chief Justice of India can chair the NHRC.

CORRECT: After the 2019 Amendment, a retired Supreme Court judge is also eligible.

WRONG: The NHRC has a fixed 5 ex-officio members.

CORRECT: It has 7 ex-officio members (post-2019), one more category being the CCPD.

MAINS ANGLE

Framework: Intro — describe the layered appointment process (President + 6-member committee). Body — evaluate whether committee composition (dominated by ruling-party office-holders such as PM and Home Minister) genuinely ensures independence versus offering only formal plurality. Conclusion — suggest judicial or civil-society representation on the selection panel as a reform.

STUDY LINK

Polity -> Election Commission appointment panel -> Comparative selection-committee design

HIGH

3. NHRC — Removal, Tenure & Security of Office

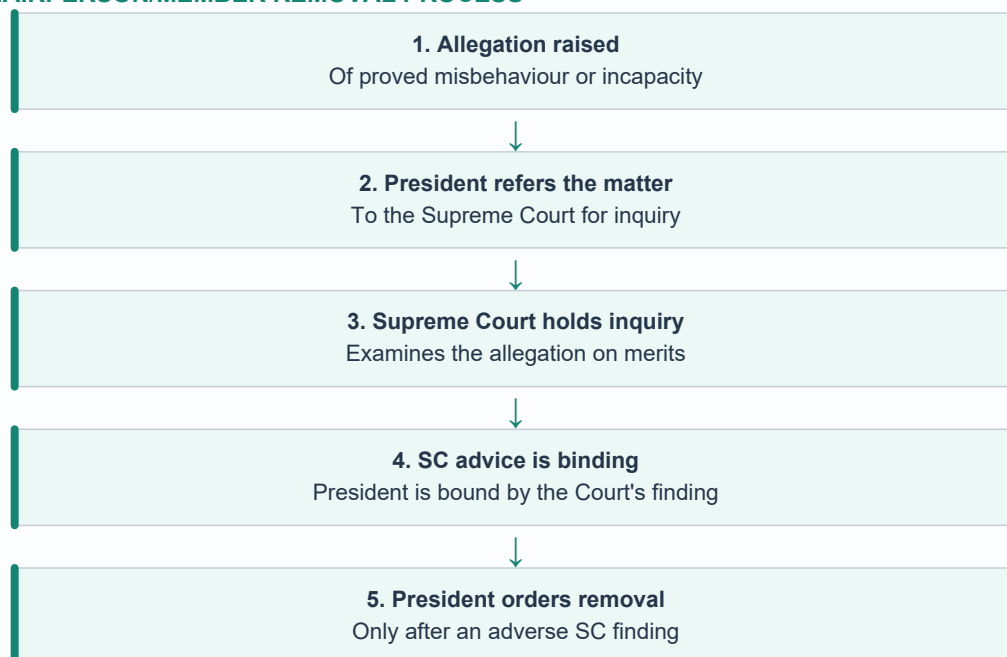
GS-II Polity -
Independence
Safeguards

NEWS TRIGGER

Whenever a statutory-commission chief faces removal calls, the NHRC's SC-inquiry safeguard is cited as the benchmark model for insulating quasi-judicial watchdogs from arbitrary executive action.

KEY DATA

Feature	Before 2019 Amendment	After 2019 Amendment
Chairperson eligibility	Retired CJI only	Retired CJI OR retired SC judge
Term	5 years or 70 years, whichever earlier	3 years or 70 years, whichever earlier
Re-appointment	Allowed	Allowed

NHRC CHAIRPERSON/MEMBER REMOVAL PROCESS**STATIC THEORY**

- The 'SC inquiry with binding advice' mechanism is the same constitutional-style safeguard used for the CEC and UPSC Chairman, signalling Parliament's intent to treat NHRC leadership similarly.
- Shortening the term from 5 to 3 years (2019) increases turnover — a trade-off between fresh leadership and institutional continuity/independence.
- Removal is exclusively a Presidential act; no other authority (not even Parliament directly) can remove a sitting member outside this process.

MEMORY HOOK

Removal = President + binding SC inquiry | Term = 3 yrs or 70, re-appointment OK

MUST-KNOW FACTS

1. Removal is by the President, only after a Supreme Court inquiry into proved misbehaviour/incapacity.
2. The SC's advice on removal is binding on the President.
3. The 2019 Amendment reduced the term from 5 years to 3 years (or age 70, whichever earlier).
4. Re-appointment of the chairperson/members is allowed.

UPSC TRAPS

WRONG: NHRC term is 5 years.

CORRECT: Reduced to 3 years (or 70 years, whichever earlier) by the 2019 Amendment.

WRONG: The President can remove an NHRC member without any inquiry.

CORRECT: Removal requires a binding Supreme Court inquiry into proved misbehaviour/incapacity.

MAINS ANGLE

Framework: Intro — state that security of tenure and a judicial removal safeguard are the two structural independence guarantees for NHRC leadership. Body — assess whether the 2019 term cut (5→3 years) weakens independence by increasing executive-appointment frequency, even as chairperson eligibility widened. Conclusion — independence needs both eligibility AND tenure safeguards; the 2019 changes strengthened one and diluted the other.

STUDY LINK

Polity -> CEC/UPSC removal safeguards ->
Comparative tenure-security design

HIGH

4. NHRC — Jurisdiction, Functions & Investigative Powers

 GS-II Polity -
Powers &
Functions

NEWS TRIGGER

Debates on custodial deaths and jail conditions routinely invoke NHRC's power to visit jails and review safeguards, testing how far its civil-court powers translate into real accountability.

NHRC — CORE INVESTIGATIVE POWERS

Powers of a Civil Court

Summoning Can summon witnesses and examine them on oath	Own Staff Has its own investigating staff, not dependent on state police alone
Document Access Can requisition public records from any court or office	Jail Visits Can visit jails to study living conditions of inmates

KEY DATA

Trigger of Inquiry	How It Works
Suo motu	NHRC takes up a matter on its own initiative
On petition	Any victim or person on their behalf can approach NHRC
On court order/direction	A court refers or directs an HR matter to NHRC

STATIC THEORY

- Civil-court powers give NHRC's inquiry a quasi-judicial character (summoning, examining on oath, requisitioning records) even though it cannot itself adjudicate criminal liability.
- Having its own investigating staff is meant to reduce dependence on the very state police machinery it may be investigating.
- The three inquiry triggers (suo motu, petition, court order) together give NHRC a broad but reactive/investigative — not prosecutorial — jurisdiction.

MEMORY HOOK

3 triggers: **Suo motu | Petition | Court order** — powers of a civil court

MUST-KNOW FACTS

1. NHRC can inquire suo motu, on a petition, or on a court's direction.
2. It enjoys the powers of a civil court while conducting inquiries.
3. It maintains its own investigating staff.
4. It can visit jails/detention facilities to review the condition of inmates.

UPSC TRAPS

WRONG: NHRC can only act if a formal written complaint is filed.

CORRECT: It can also act suo motu or on a court's direction — a petition is only one of three triggers.

MAINS ANGLE

Framework: *Intro* — outline NHRC's investigative toolkit (civil-court powers, own staff, jail-visit rights). *Body* — contrast investigative reach with enforcement weakness (see Module 5) to show a structural mismatch between fact-finding capacity and remedial authority. *Conclusion* — call for converting fact-finding strength into binding remedial power for grave violations.

STUDY LINK

Polity -> Article 32/226 writ remedies -> NHRC's quasi-judicial toolkit

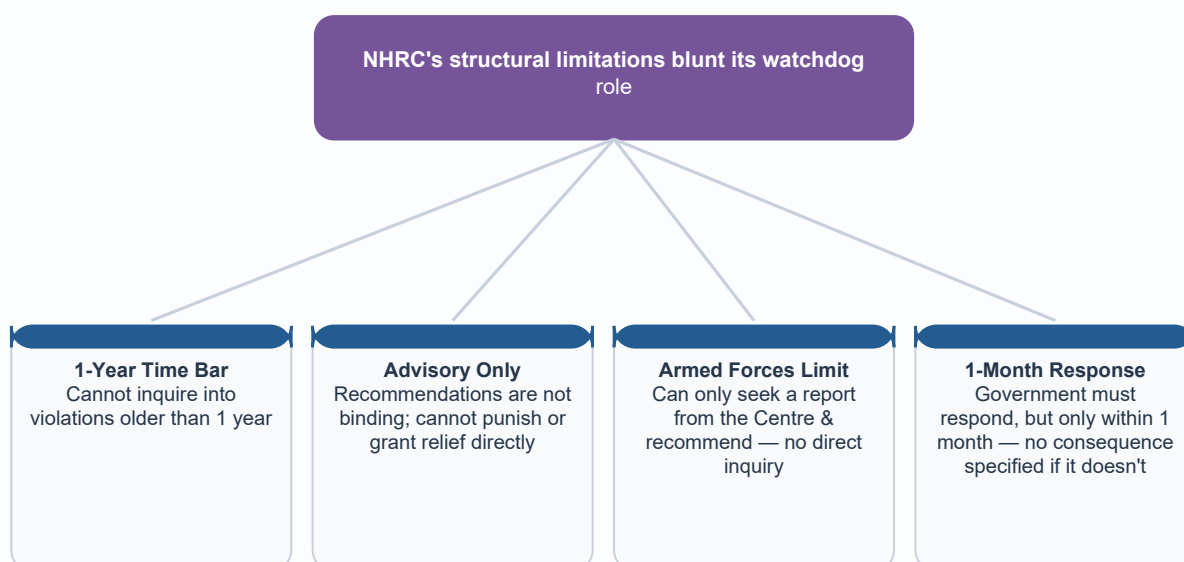
HIGH

5. NHRC — Limitations: Time Bar, Advisory Nature & Armed Forces

GS-II Polity -
Institutional
Limitations

NEWS TRIGGER

The **'toothless tiger'** criticism of NHRC — recommendations without enforceability — resurfaces each time high-profile custodial-death or encounter cases end without binding consequences.

IS NHRC AN EFFECTIVE WATCHDOG?**KEY DATA**

Limitation	Practical Implication
1-year bar on inquiry	Older/historic HR violations fall outside NHRC's jurisdiction entirely
Advisory recommendations	NHRC cannot itself award compensation or prosecute — it can only recommend or approach SC/HC for writs
Armed-forces restriction	For the armed forces, NHRC seeks only a report from the Centre and recommends — no independent inquiry

STATIC THEORY

- The 1-year limitation period is meant to keep inquiries evidence-fresh, but it also lets old, serious violations go permanently outside NHRC's reach.
- 'Advisory, not binding' is the single biggest structural critique of NHRC — it can recommend compensation/prosecution or approach courts, but cannot itself enforce.
- The armed-forces carve-out reflects a deliberate legislative balance between civilian oversight and military operational autonomy — but it is also the most criticised limitation in conflict-zone HR debates.

MEMORY HOOK

NHRC can RECOMMEND, not COMMAND — 1-year bar + advisory-only + armed-forces carve-out

MUST-KNOW FACTS

1. NHRC cannot inquire into a matter more than 1 year old.
2. Its recommendations are advisory, not binding on the government.
3. For the armed forces, it can only seek a report and make recommendations — not conduct a full inquiry.
4. The government must respond to NHRC's recommendations within 1 month.

UPSC TRAPS

WRONG: NHRC recommendations are legally binding on the government.

CORRECT: They are advisory only; NHRC cannot punish or directly grant relief.

WRONG: NHRC can fully investigate alleged human-rights violations by the armed forces.

CORRECT: It can only call for a report from the Central Government and make recommendations.

MAINS ANGLE

"The NHRC is a recommendatory watchdog without teeth." Framework: Intro — state the three structural limitations (time bar, advisory nature, armed-forces carve-out). Body — link to the GANHRI accreditation-review concerns over independence and enforceability. Conclusion — evaluate reform options: removing/extending the 1-year bar, giving limited enforcement power for grave violations, judicial oversight of armed-forces cases.

STUDY LINK

Polity -> Paris Principles -> Watchdog institution design

HIGH

6. SHRC — Composition, Appointment & Jurisdiction

GS-II Polity -
State-Level
Institutions

NEWS TRIGGER

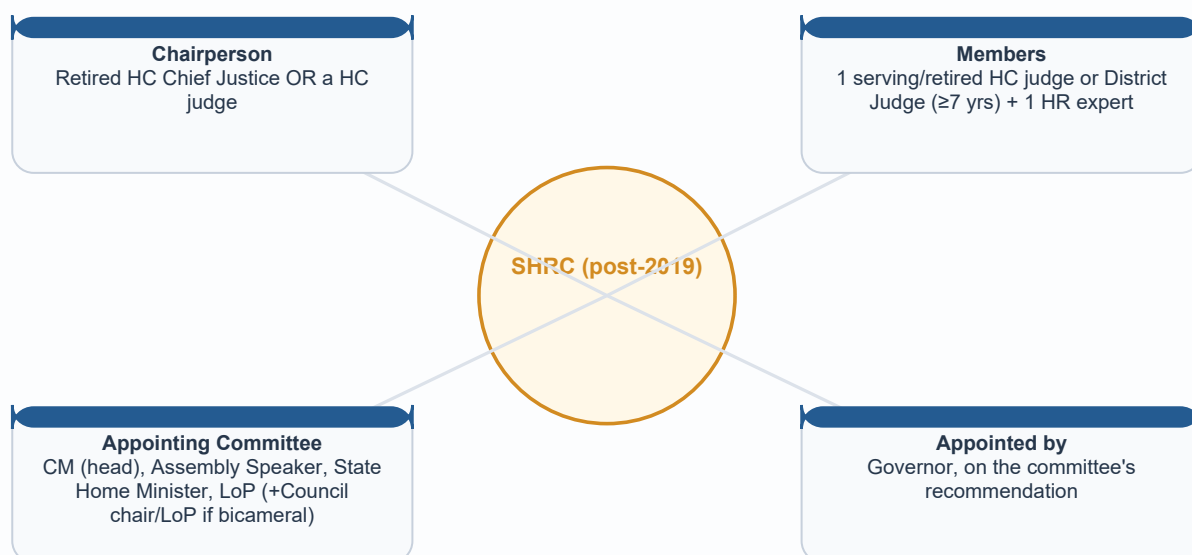
SHRCs' State List/Concurrent List-only jurisdiction is frequently tested against NHRC's all-India reach whenever an HR matter straddles central and state subjects.

INTRO & ORIGIN

A State Human Rights Commission may be constituted by a state government under the same 1993 Act. Establishment and operational status vary across states — no fixed national count is asserted here, since it changes over time.

SHRC jurisdiction is confined to matters relating to the State List (II) and Concurrent List (III).

SHRC — COMPOSITION & APPOINTING COMMITTEE



KEY DATA

Aspect	Detail
Jurisdiction	State List (II) & Concurrent List (III) subjects only
Exclusion	Not applicable if NHRC or another statutory commission is already seized of the matter
Term	3 years or 70 years, whichever earlier

STATIC THEORY

- SHRC's jurisdiction is deliberately narrower than NHRC's — confined to State and Concurrent List subjects — to respect the federal division of legislative competence.
- The 'already seized' exclusion prevents duplicate/parallel inquiries by NHRC and SHRC (or another statutory commission) into the same matter.
- Not every state has constituted an SHRC; establishment is a state-government choice under the Act, not automatic.

MEMORY HOOK

SHRC jurisdiction = State List + Concurrent List ONLY (not Union List)

MUST-KNOW FACTS

1. SHRC chairperson: a retired HC Chief Justice or a HC judge.
2. SHRC members: 1 serving/retired HC judge or District Judge (≥7 years) + 1 HR expert.
3. SHRC is appointed by the Governor on the committee's recommendation.
4. SHRC jurisdiction covers only State List and Concurrent List subjects.

UPSC TRAPS

WRONG: SHRC can inquire into any human-rights matter within the state, including Union List subjects.

CORRECT: Its jurisdiction is limited to State List (II) and Concurrent List (III) subjects.

MAINS ANGLE

Framework: Intro — position SHRC as the state-level counterpart of NHRC under the same 1993 Act. Body — examine how List-based jurisdictional division supports cooperative federalism but can also create gaps when a violation spans Union and State subjects. Conclusion — argue for clearer inter-commission coordination protocols.

STUDY LINK

Polity -> Seventh Schedule (State & Concurrent Lists) -> SHRC jurisdiction

HIGH**7. SHRC — The Removal Trap & Human Rights Courts**

GS-II Polity -
Independence
Safeguards

NEWS TRIGGER

This appointment-versus-removal asymmetry is one of the most frequently tested UPSC traps across state-level statutory bodies.

KEY DATA

Function	Human Rights Courts
Legal basis	Provided for under the Protection of Human Rights Act, 1993
Level	One in each district (as notified by the state government)
Constituting authority	State government, with the concurrence of the High Court Chief Justice
Purpose	Speedy trial of offences relating to human-rights violations

SHRC MEMBER: APPOINTED VS REMOVED

STATIC THEORY

- The Governor appoints SHRC members but has no role at all in their removal — that power rests solely with the President, mirroring the NHRC removal mechanism.
- This split (state-level appointment, Union-level removal) is a deliberate check meant to shield SHRC members from purely local political pressure at the removal stage.
- Human Rights Courts operationalise SHRC/NHRC findings into speedy criminal trials at the district level, requiring HC Chief Justice concurrence to safeguard judicial independence.

MEMORY HOOK

SHRC: Governor APPOINTS, but only the PRESIDENT REMOVES.

MUST-KNOW FACTS

1. SHRC members are removed only by the President, never by the Governor.
2. Removal requires the same SC-inquiry safeguard as NHRC.
3. The Act provides for a Human Rights Court in each district, set up by the state government with the HC Chief Justice's concurrence.

UPSC TRAPS

WRONG: Since the Governor appoints SHRC members, the Governor can also remove them.

CORRECT: Removal power rests exclusively with the President, on the same grounds and SC-inquiry process as NHRC.

WRONG: Human Rights Courts are set up unilaterally by the state government.

CORRECT: They require the concurrence of the High Court Chief Justice.

MAINS ANGLE

Framework: Intro — highlight the appointment (Governor) vs removal (President) asymmetry as a deliberate independence safeguard. Body — assess whether this split genuinely protects SHRC members from state-level political pressure, or merely shifts the pressure point to appointment. Conclusion — link to the broader debate on Governor-Centre-State institutional design.

STUDY LINK

Polity -> Governor's discretionary/statutory roles -> Centre-State institutional checks

HIGH

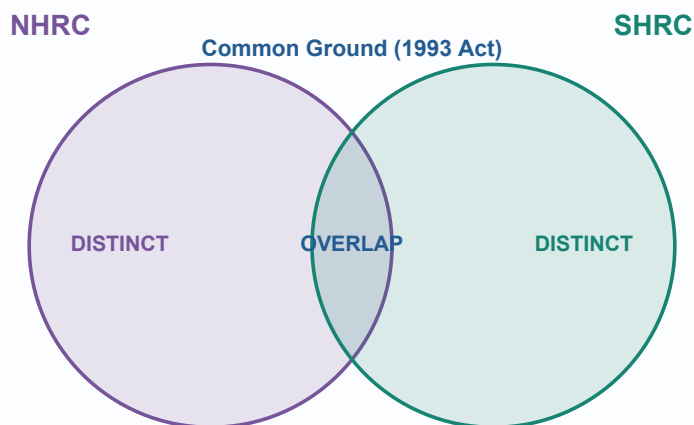
8. NHRC vs SHRC — Comparative Institutional Structure

GS-II Polity -
Comparative
Institutions

NEWS TRIGGER

Prelims frequently frames NHRC-SHRC differences as 'match the following' or statement-based questions on appointment/removal/jurisdiction — making the comparison itself an exam-critical unit.

NHRC VS SHRC — WHAT'S SHARED, WHAT'S DISTINCT



NHRC

- Chairperson: retired CJI or SC judge
- Jurisdiction: all-India (Union + State + Concurrent)
- Appointed AND removed via the President

Common Ground (1993 Act)

- Statutory under the Protection of Human Rights Act, 1993
- Term: 3 years or 70 years, whichever earlier
- Removal only via President + binding SC inquiry
- Recommendations are advisory, not binding

SHRC

- Chairperson: retired HC Chief Justice or HC judge
- Jurisdiction: State List + Concurrent List only
- Appointed by Governor, removed by President

Both bodies share the same removal safeguard even though their appointing authorities differ.

KEY DATA

Aspect	NHRC	SHRC
Chairperson	Retired CJI or retired SC judge	Retired HC Chief Justice or HC judge
Appointing authority	President (6-member committee)	Governor (state committee)
Removing authority	President (SC inquiry)	President (SC inquiry) — NOT the Governor
Jurisdiction	All-India; all subjects	State List + Concurrent List only
Ex-officio members	7 (other commissions + CCPD)	None specified

STATIC THEORY

- The single most exam-tested distinction is: SHRC is appointed by the Governor but removed only by the President — an asymmetry that does not exist for NHRC (President handles both ends).
- Jurisdictional scope (all-India for NHRC vs State/Concurrent-only for SHRC) mirrors the general Centre-State division of subjects under the Seventh Schedule.
- Both commissions share identical tenure rules (3 years/70 years) and an identical, judicially-anchored removal safeguard.

MEMORY HOOK

NHRC = President appoints & removes | SHRC = Governor appoints, President removes

MUST-KNOW FACTS

1. NHRC chairperson can be a retired CJI or SC judge; SHRC chairperson must be from the High Court cadre.
2. NHRC's jurisdiction is all-India; SHRC's is limited to State and Concurrent List subjects.
3. Both have identical 3-year/70-year tenure rules.
4. Both share the same President + binding-SC-inquiry removal mechanism.

UPSC TRAPS

WRONG: NHRC and SHRC have identical appointing authorities.

CORRECT: NHRC is appointed by the President; SHRC is appointed by the Governor.

WRONG: SHRC members can be removed by the same authority that appoints them (the Governor).

CORRECT: SHRC members are removed only by the President, unlike their appointment.

MAINS ANGLE

Framework: Intro — frame NHRC-SHRC as a two-tier human-rights architecture under one statute. Body — compare appointment/removal/jurisdiction to show how the design balances central oversight (removal via President for both) with cooperative federalism (state-level appointment for SHRC). Conclusion — assess whether this hybrid design strengthens or dilutes institutional independence.

STUDY LINK

Polity -> Election Commission vs State Election Commissions -> Similar two-tier pattern

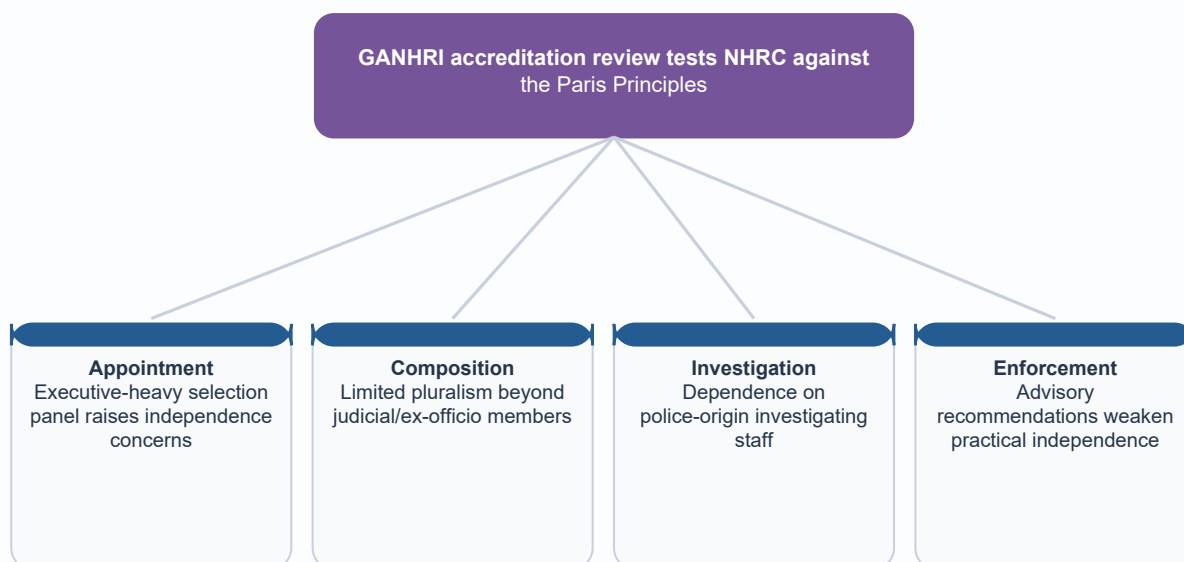
HIGH

9. Independence Debate — GANHRI Status, Paris Principles & Reform Demands

GS-II Polity -
Institutional
Reform

NEWS TRIGGER

As of the last verified check (21 Jul 2026), NHRC's own portal still shows India holding GANHRI A-status while the review cycle remains open — keeping alive concerns over independence, pluralism and the use of police investigators flagged in earlier review rounds.

DOES NHRC MEET GLOBAL INDEPENDENCE BENCHMARKS?

KEY DATA

Paris Principle Criterion	Concern Raised (□□ inference, not a confirmed downgrade)
Independence of appointment	Selection committee is executive-dominated (PM, Home Minister, ruling-party members)
Pluralism in composition	Limited civil-society/NGO representation in the commission's own membership
Adequate investigating resources	Reliance on seconded police officers as investigating staff, questioned for independence
Enforceability	Advisory-only recommendations limit the 'teeth' of the institution

STATIC THEORY

- GANHRI (Global Alliance of National Human Rights Institutions) accreditation is a peer-review process, not a binding international legal sanction — but a downgrade affects a country's voice at UN human-rights forums.
- The Paris Principles (adopted by the UN General Assembly, 1993) set the benchmark criteria — independence, pluralism, adequate resources, and cooperation — used to accredit national HR institutions worldwide.
- As of the last verified check, no confirmed final downgrade of India's NHRC status has been officially published — this must be stated as an open/unresolved review, not a completed downgrade.

MEMORY HOOK

GANHRI reviews NHRC against the PARIS PRINCIPLES: Independence + Pluralism + Resources + Cooperation

MUST-KNOW FACTS

1. GANHRI accreditation benchmarks national HR institutions against the Paris Principles.
2. As of the last verified check (21 Jul 2026), the review of India's NHRC status remained unresolved — not a confirmed downgrade.
3. Recurring concerns include appointment independence, pluralism, and use of police investigators.

UPSC TRAPS

WRONG: GANHRI has officially downgraded India's NHRC to B-status.

CORRECT: As of the last verified check, the review remains unresolved on NHRC's own portal — treat any downgrade claim as unconfirmed unless freshly verified.

MAINS ANGLE

"Reforms needed to align the NHRC with the Paris Principles."

Framework: Intro — introduce the Paris Principles as the accreditation benchmark. Body — map each principle (independence, pluralism, resources, enforceability) to NHRC's specific structural gaps. Conclusion — propose reforms: broader selection panel, independent investigating cadre, limited binding powers for grave violations.

STUDY LINK

International Relations -> UN Human Rights Council -> India's accreditation standing

HIGH

10. Verified CA/PYQ Anchors & Mains Practice Frameworks

GS-II Polity -
Revision &
Answer Writing

NEWS TRIGGER

This closing module consolidates every verified CA anchor from the module set into one revision and answer-writing unit — no new claims are introduced here.

STATIC THEORY

- Revision anchor 1: NHRC/SHRC are statutory (1993 Act), never constitutional — this single fact underlies most Prelims traps in this topic.
- Revision anchor 2: the appointment-removal split for SHRC (Governor appoints, President removes) is the most tested asymmetry.
- Revision anchor 3: NHRC's core limitations — 1-year time bar, advisory-only recommendations, armed-forces carve-out — form the 'toothless tiger' critique.
- Revision anchor 4: GANHRI/Paris Principles review is an ongoing, unresolved process as of the last verified check — do not assert a completed downgrade.

MEMORY HOOK

Statutory, not Constitutional | Governor appoints SHRC, President removes | Advisory, not binding

MUST-KNOW FACTS

1. NHRC (1993) and SHRC (state-level, same Act) are both statutory bodies.
2. SHRC's Governor-appoints/President-removes split is a top UPSC trap.
3. NHRC's three core limitations are the 1-year time bar, advisory-only recommendations, and the armed-forces carve-out.
4. The GANHRI/Paris Principles review of India's NHRC status remains open as of the last verified check (21 Jul 2026).

UPSC TRAPS

WRONG: All statutory human-rights bodies in India have identical appointment and removal rules.

CORRECT: NHRC (President appoints & removes) and SHRC (Governor appoints, President removes) differ precisely at the appointment stage.

WRONG: NHRC's advisory nature means it has no practical value.

CORRECT: It retains civil-court powers, jail-visit rights and can approach constitutional courts for writ relief — 'advisory' limits enforcement, not investigation.

NHRC/SHRC — CONCEPT LINKS ACROSS THE SYLLABUS

Core Concept	Linked Concept	Why It Matters
NHRC mandate	Article 21 (life & personal liberty)	NHRC operationalises a constitutional guarantee through statutory machinery
NHRC advisory limitation	Lokpal / CVC (also advisory-heavy)	Recurring UPSC theme: statutory watchdogs with recommendatory, not punitive, power
SHRC jurisdiction	Seventh Schedule (State/Concurrent Lists)	Tests understanding of federal distribution of subjects
Human Rights Courts	District judiciary & speedy trial	Links institutional design to access-to-justice debates
GANHRI accreditation	UN Human Rights Council standing	Connects domestic institutional design to India's international HR reputation

MAINS ANGLE

Consolidated Mains Framework — Intro: define NHRC/SHRC as statutory watchdogs under the 1993 Act. Body: (a) institutional design — composition, appointment, removal; (b) functional limitations — time bar, advisory nature, armed-forces carve-out; (c) independence debate — GANHRI/Paris Principles concerns. Conclusion: argue for calibrated reform — preserving quasi-judicial investigative strength while closing the enforcement gap, without over-judicialising an executive-facing watchdog.

STUDY LINK

Polity -> Lokpal & Lokayuktas -> Comparative watchdog-institution design

End of Register Notes — UPSC Agent / Copilot CLI